

		not that Plaintiff David L. Gay experienced a ‘splenic injury,’ namely a splenic artery tear, during the colonoscopy Dr. Nguyen performed on him;” the depositions of the PMK of the Surgery Center and Dr. Nguyen that it was their standard of care to not discharge a patient complaining of pain, or the deposition testimony of plaintiff Mr. Gay that he complained of severe pain when he was being discharged. Since Nurse Minero’s opinion does not consider this evidence, Nurse Minero’s declaration is insufficient to meet the Surgery Center’s initial burden proof to establish the Surgery Center acted within the standard of care in the community and that the Surgery Center’s acts were not a legal cause of Plaintiffs’ injuries. Accordingly, judgment on the negligence/malpractice cause of action is DENIED. Since plaintiff Jamie Gay’s Loss of Consortium cause of action also arises out of Mr. Gay’s claim for Negligence/Malpractice, judgment as to the Loss of Consortium claim is also DENIED. Based on the foregoing, the Motion for Summary Judgment is DENIED. Moving party to give notice.
8	23-01357339 <i>Guarienti vs. Providence Saint Jude Medical Center</i>	Demurrer to Amended Complaint Defendant Pauline Ho, M.D.’s Demurrer to Plaintiff’s First Amended Complaint is OVERRULED. Defendant contends Plaintiff has failed to allege the elements of constructive fraud, and that Plaintiff’s claim is barred under the Federal Public Readiness and Emergency Preparedness Act, 42 U.S.C. §§ 247d-6d, 247d-6e (“PREP Act”). In the First Amended Complaint (FAC), Plaintiff alleges Defendants negligently treated decedent for COVID-19, including providing Remdesivir and failing to provide information about potential off-label treatments such as hydroxychloroquine. Rather than pursuing a claim for medical negligence, Plaintiff has chosen to base her wrongful death claim on a violation of Civil Code section 1573, which states: “Constructive fraud consists: 1. In any breach of duty which, without an actually fraudulent intent, gains an advantage to the person in fault, or any one claiming under him, by misleading another to his prejudice, or to the prejudice of any one claiming under him; or, 2. In any such act or omission as the law specially declares to be fraudulent, without respect to actual fraud.”

		At this stage, Plaintiff has adequately alleged facts which, if proven, could support a claim that Defendant misled Plaintiff and decedent regarding the available treatments for COVID-19. Whether Plaintiff can support the elements of her claim with evidence, including Defendant gaining an advantage and Plaintiff or decedent suffering prejudice, can be decided at a later stage. As for Defendant's contention that Plaintiff's claim is barred by the PREP Act, Defendant has not presented evidence or requested judicial notice of matters which could allow the Court to determine this issue at the pleading stage. For example, Defendant contends Remdesivir, which was allegedly provided to decedent, was a "covered countermeasure" because it was FDA-approved at relevant times. Defendant cites an FDA document which is not the subject of a request for judicial notice, but the Court cannot consider evidence at this stage unless it is subject to judicial notice. Defendant also does not cite case law discussing application of the PREP Act in this context. Therefore, the Court declines to sustain the demurrer on the grounds of PREP Act immunity.
9	21-01185998 <i>Jackson vs. Collectors Universe, Inc.</i>	Motion to Appear Pro Hac Vice Defendant Collectors Universe, Inc.'s (also sued as Professional Sports Authenticator a/k/a PSA) Application of Jonathan Parente to Appear as Counsel Pro Hac Vice is GRANTED. Defendant has submitted the verified application of counsel which complies with the California Rules of Court, Rule 9.40. Moving Party is to give notice.
10	22-01285836 <i>Marino vs. Orange County School of the Arts</i>	Motion for Summary Judgement and/or Adjudication Defendant Orange County School of Arts move for summary judgment in favor of Defendant and against Plaintiff Daniel B. Marino is DENIED. Plaintiff's Evidentiary Objections to Defendants' Evidence are OVERRULED for failure to comply with California Rules of Court, Rule 3.1354, subdivisions (a) and (b). Defendant's Evidentiary Objections to Plaintiff's Evidence are OVERRULED for failure to comply with California Rules of Court, Rule 3.1354, subdivisions (a) and (b). Plaintiff's request for judicial notice of excerpts from a publication by the State of California Department of Industrial Relations, Division of Labor Standards Enforcement, entitled "California Child Labor Laws 2013", pursuant to Evidence Code, section 452(b) is GRANTED.